

Trump's Use of Troops in Los Angeles Was Unlawful, Judge Rules

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A federal judge on Tuesday ruled that the Trump administration's deployment of troops to Los Angeles in response to protests over immigration policies violated a 19th-century law prohibiting the use of federal forces for domestic law enforcement.

In a withering opinion taking aim at President Trump's enthusiasm for military deployments at home, Judge Charles Breyer in San Francisco found that the administration didn't comply with the Posse Comitatus Act, an 1878 statute that restricts the use of U.S. armed forces on America's streets. "There were indeed protests in Los Angeles, and some individuals engaged in violence," Breyer wrote. "Yet there was no rebellion, nor was civilian law enforcement unable to respond to the protests and enforce the law."

California Attorney General Rob Bonta, a Democrat, said the "ruling affirms that President Trump is not King, and the power of the executive is not boundless." Bonta described the troop deployment as "political theater" where Trump used service members "as pawns to further his anti-immigrant agenda."

White House spokeswoman Anna Kelly said in a statement: "While far-left courts try to stop President Trump from carrying out his mandate to Make America Safe Again, the President is committed to protecting law-abiding citizens, and this will not be the final say on the issue."

Democratic California Gov. Gavin Newsom, backed by other leaders of the Democratic-leaning state, filed suit in June against the military deployment,

which at its peak included 4,000 troops from federalized California National Guard units and 700 Marines from Camp Pendleton. The Los Angeles operation has been winding down as protests in and around the city subsided. Breyer on Tuesday issued an injunction requiring only that the 300 California National Guard troops still deployed follow the initial training they received—before the Pentagon expanded their duties beyond protection of federal facilities to include crowd control, traffic direction and other functions Breyer said were reserved for civilian law enforcement. The order will take effect Sept. 12, giving the administration time to appeal. The 52-page opinion clearly was aimed at discouraging Trump from expanding the military's presence on city streets, something the president frequently suggests he might do. On Tuesday, Trump said he planned to approve federal intervention to address what he called out-of-control crime in Chicago.

"We're going in," Trump said Tuesday in the Oval Office when asked about Chicago, adding that he has an obligation to address crime in the city. Trump didn't say when he would take action in Chicago or whether he would call in the National Guard, as he did in Washington, D.C., where under his orders National Guardsmen in battle gear now mill about Metro platforms, national monuments and other high-profile locations. "President Trump's recent executive orders and public statements regarding the National Guard raise serious concerns as to whether he intends to order troops to violate the Posse Comitatus Act elsewhere in California," wrote Breyer, a 1997 Bill Clinton appointee. Trump and Defense Secretary Pete Hegseth "have stated their intention to call National Guard troops into federal service in other cities across the country," Breyer wrote, "thus creating a national police force with the President as its chief." Breyer wrote that officials with the U.S. Army's Northern Command, whose Task Force 51 had responsibility for the operation, largely provided proper training to the forces regarding their limited role protecting federal facilities while civilian officers of U.S. Immigration and Customs Enforcement and other civilian agencies carried out their duties. But Breyer found that Hegseth improperly asserted a "constitutional exception" to expand the authorization to include four activities that military training normally prohibits in domestic operations: security patrols, crowd control, traffic control and riot control. The opinion cited several incidents where National Guard units engaged in such prohibited actions, and took particular exception to a show of force the Trump administration staged in Los Angeles's MacArthur Park, near many immigrant neighborhoods. The plan was for ICE agents and other federal officers to march

through the park while Guard forces with Humvees were parked at the perimeter.

The purpose wasn't to make arrests, but "to demonstrate, through a show of presence, the capacity and freedom of maneuver of federal law enforcement," according to government documents. The march was dubbed Operation Excalibur, which Breyer noted references "the legendary sword of King Arthur, which symbolizes his divine sovereignty as king." Protests broke out in Los Angeles on June 6 after ICE agents raided Home Depot locations, a doughnut store and a clothing wholesaler, detaining some 70 to 80 people and arresting 44. The Los Angeles police chief said that federal officials didn't brief his department regarding the June raids, undermining the LAPD's ability to prepare for likely protests. The demonstrations at times turned violent, with objects thrown at federal and local officers, scuffles with police and the vandalizing of government buildings. On June 7, Trump issued an order declaring that protests and violence inhibiting immigration enforcement "constitute a form of rebellion against the authority of the Government of the United States." The order invoked emergency authority to call state National Guard units into federal service to protect government employees and property during the immigration crackdown.

In an earlier decision, Breyer sided with Newsom and found that the Trump administration had improperly federalized the California Guard. But a federal appeals court in San Francisco quickly blocked Breyer's order, finding that the president was within his authority to declare the Los Angeles protests an emergency and dismissing Newsom's claim that Hegseth was required to direct the federalization order to the governor himself. While elected officials in California and Illinois have pushed back against the president's moves, the mayor of Washington, D.C., has been more amenable. In an executive order issued on Tuesday, the city's mayor, Muriel Bowser, established an operations center to coordinate with federal officials "to the maximum extent allowable by law."

A spokesman for the mayor said the order will allow for more communication and coordination in the city. Domestic use of the military has been a tripwire since the nation's founding. The Declaration of Independence cites King George III's deployment of British soldiers to the American colonies among its grievances. But the Posse Comitatus Act is vaguely written, and the Justice Department has tended to read its restrictions relatively narrowly.

When protests against the Vietnam War descended on the Pentagon, the Justice Department issued internal opinions advising—as Assistant Attorney General William Rehnquist, a future chief justice, put it in a 1971 memo—that the statute “does not impair the President’s inherent authority to use troops for the protection of federal property and federal functions.